

The Judiciary - The Foundation Track

Chapter F1.7 — From Zero: The Court That Will Review Your Section 7A Order

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NOTE · HOW TO USE THIS DOCUMENT

The chapter about the institution that will test your work. It covers the integrated single judiciary India adopted, the Supreme Court's composition, the appointment process through the collegium and the failed NJAC, security of tenure and the removal procedure; then the Supreme Court's five jurisdictions - original, writ, appellate, advisory and review - with Article 32 taken carefully and set against Article 226, which is the one you will actually meet. It takes the FIVE WRITS in turn with worked application to real Section 7A scenarios, and distinguishes certiorari from prohibition and mandamus, since an aggrieved employer's petition against your order will be for certiorari. It then covers the High Courts and subordinate judiciary, judicial review and the basic structure doctrine, judicial activism and PIL, and the tribunals question - including the merger of the EPF Appellate Tribunal into the CGIT by the Finance Act 2017 and the constitutional principles governing tribunalisation. Study time 3 hours.

This is the FOUNDATION layer. Article numbers, jurisdictional provisions and the removal procedure are settled by the Constitution. The current sanctioned strength of the Supreme Court and the number of High Courts are statutory figures that change and are marked CONFIRM. Case-law positions are stated as at August 2026; where a matter is under reference to a larger Bench, that is noted.

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0. The Institution That Tests Your Work

Everything you decide under Section 7A can end up in front of a High Court. This chapter is about who they are and what they will ask.

WHY THIS EXISTS · WHY THE JUDICIARY IS THE LAST LINK IN YOUR CHAIN

The spine of this manual ends in a court. Recall it: **Part IV Directives → Parliament legislates under Entries 23 and 24 → the EPF & MP Act 1952 → three Schemes and EPFO → EPFO is "State" under Article 12 → your Section 7A power is quasi-judicial, bound by Articles 14 and 21 → appeal under s.7-I to the CGIT → and thereafter THE HIGH COURT UNDER ARTICLE 226, typically seeking CERTIORARI.**

That last link is this chapter. And it is not decoration. Everything F3.4 taught you about writing a defensible order - framing issues, recording contentions, showing the computation, dealing with the employer's arguments - exists because **a court will read your order and ask whether it discloses reasons.** The two defective orders in F3.4 fail on grounds a court would identify in minutes.

So this chapter answers four practical questions:

- 1 **Who reviews you?** The High Court under Article 226, in the exercise of its writ jurisdiction. Not the Supreme Court in the first instance
- 2 **On what grounds?** Jurisdictional error, breach of natural justice, error apparent on the face of the record, and perversity - not mere disagreement with your findings of fact
- 3 **By what writ? Certiorari,** to quash an order of a quasi-judicial authority. Understanding why it is certiorari and not mandamus or prohibition is the practical heart of Session 3
- 4 **What protects the court's independence, so that its review is real?** Security of tenure, a removal procedure that is deliberately hard, and charged (not voted) salaries - the F1.5 point about the Consolidated Fund

The 2023 paper's Polity block drew on judiciary questions, and the format is typically article-identification (which article gives what jurisdiction), the writs (their names and what each does), and the collegium/NJAC story. This chapter is built for those.

STUDY SESSION · CHAPTER F1.7 - THE FIVE SESSIONS

- 1 **Session 1** - The integrated judiciary and the Supreme Court's composition (Section 1)
- 2 **Session 2** - Appointment, tenure, removal, and independence (Section 2)
- 3 **Session 3 - The five jurisdictions and THE FIVE WRITS** worked on Section 7A facts (Section 3)
- 4 **Session 4** - High Courts, subordinate judiciary, and tribunals (Section 4)
- 5 **Session 5** - Judicial review, basic structure, and PIL (Section 5)

Then **42 graded questions.** Budget **five sessions**, about **two days**.

1. Session 1 - An Integrated Judiciary ★★★★★

START FROM ZERO · WHAT

Federal countries face a choice about courts. **The USA has a DUAL system:** federal courts apply federal law, State courts apply State law, and the two hierarchies are largely separate up to the US Supreme Court. **India rejected that model.**

India has an INTEGRATED, SINGLE judiciary. There is **one hierarchy:** Supreme Court at the apex, High Courts below it, and subordinate (district and lower) courts below them. **The same courts apply both Union and State law.** There is no separate set of "central courts" enforcing central statutes.

Three consequences that matter for you:

- 1 **A District Court in any State can try an offence under a central Act** like the EPF & MP Act's Section 14 penalties. There is no separate federal criminal court
- 2 **A High Court under Article 226 can review the order of a central authority** like an APFC, even though EPFO is a central organisation. **This is why an employer in Coimbatore challenges your order in the Madras High Court, not in Delhi** - the High Court with territorial jurisdiction over the cause of action
- 3 **The Supreme Court sits at the apex of a single pyramid**, so its declarations of law bind every court in India under **Article 141**

Why India chose integration. The Constituent Assembly considered the dual model and rejected it for three reasons: the expense and duplication of two hierarchies; the risk of conflicting interpretations of the same law; and the fact that India was emerging from a unitary colonial administration where a single hierarchy already existed and worked. **The integrated judiciary is thus one of the "unitary features" of a Constitution that is otherwise federal** - a point examiners like, because it belongs both to this chapter and to the federalism chapter (F1.8).

MUST MASTER · THE SUPREME COURT - COMPOSITION AND SEAT

- 1 **Article 124(1)** - There **shall be** a Supreme Court of India consisting of a **Chief Justice of India** and, until Parliament by law prescribes a larger number, **not more than seven other Judges**
- 2 **Parliament has repeatedly increased the number.** The **current sanctioned strength is 34 judges (the CJI + 33)**, fixed by the Supreme Court (Number of Judges) Amendment Act 2019. **Treat the figure as CONFIRM in case of further amendment, but 34 is the current answer**
- 3 **Seat of the Supreme Court - Article 130:** **Delhi**, or such other place as the **Chief Justice of India** may, with the approval of the President, appoint. **So the CJI (with Presidential approval), not Parliament, can shift the Court's sitting** - an unusual provision worth knowing
- 4 **Qualifications for appointment as a Judge - Article 124(3):** a citizen of India who has been
 - 5 a **Judge of a High Court for at least 5 years**, OR
 - 6 an **advocate of a High Court for at least 10 years**, OR
 - 7 in the President's opinion, a **DISTINGUISHED JURIST**

The "**distinguished jurist**" route has never been used to appoint anybody to the Supreme Court. It exists on paper. **A question asking whether an academic can be appointed directly to the Supreme Court has "yes, in principle, as a distinguished jurist" as the correct answer**, and the fact that it has never happened is a good supplementary point.

Note there is NO minimum age prescribed for appointment as a Supreme Court judge - only the qualifying experience. **Retirement age is 65** (Article 124(2)). Compare **High Court judges, who retire at 62** (Article 217(1)). **The 65 / 62 pair is one of the most frequently tested facts in this chapter.**

CHECK YOURSELF · SESSION 1

- 1 Distinguish an integrated judiciary from a dual system, and name the country that uses each
- 2 Give three consequences of integration, including which High Court reviews an APFC's order
- 3 Why did the Constituent Assembly choose integration?
- 4 State the current sanctioned strength of the Supreme Court and the Act that fixed it
- 5 Who may change the Supreme Court's seat, and with whose approval?
- 6 Name the three routes to qualification as a Supreme Court judge. Which has never been used?
- 7 Give the retirement ages for Supreme Court and High Court judges

2. Session 2 - Appointment, Tenure, Independence



MUST MASTER · THE COLLEGIUM, AND THE NJAC THAT NEVER CAME INTO FORCE

The constitutional text is spare. **Article 124(2)** says a Judge shall be appointed by the **President** after **consultation** with such Judges of the Supreme Court and High Courts as the President may deem necessary, and that **in the case of appointment of a Judge other than the Chief Justice, the Chief Justice of India SHALL ALWAYS BE CONSULTED.**

Everything else is case law. The meaning of "consultation" was decided in three cases known as the Judges Cases:

- 1 **First Judges Case (SP Gupta, 1981)** - held that "consultation" does NOT mean concurrence; the executive's view prevailed. **Executive primacy**
- 2 **Second Judges Case (SC Advocates-on-Record Association, 1993)** - **REVERSED** this. Held that "consultation" means **concurrence**, and that the CJI's opinion, formed in consultation with senior colleagues, has primacy. **This created the COLLEGIUM**
- 3 **Third Judges Case (Special Reference, 1998)** - clarified the collegium's composition: the **CJI plus the four senior-most Supreme Court judges** for Supreme Court appointments; **CJI plus two senior-most** for High Court appointments and transfers

So the collegium is a judicial creation, not a constitutional provision. That is the single most important point about it, and it is why the controversy exists.

THE NJAC ATTEMPT. Parliament passed the **99th Constitutional Amendment Act 2014** and the **National Judicial Appointments Commission Act 2014**, creating a six-member NJAC (the CJI, two senior-most SC judges, the Union Law Minister, and two eminent persons) to make judicial appointments.

In Supreme Court Advocates-on-Record Association v Union of India (2015) - the FOURTH JUDGES CASE - the Supreme Court struck down the 99th Amendment and the NJAC Act as **UNCONSTITUTIONAL**, holding by a 4:1 majority that they violated the **BASIC STRUCTURE** by impairing the **independence of the judiciary** and the **primacy of the judiciary in appointments.**

So the collegium was restored and remains the operative system. A **Memorandum of Procedure** governs the mechanics. The NJAC is the most significant recent constitutional confrontation between Parliament and the judiciary, and **the fact that a constitutional amendment was struck down on basic-structure grounds is itself a major examination point** (Session 5 develops it).

MUST MASTER · SECURITY OF TENURE AND THE REMOVAL PROCEDURE - ARTICLE 124(4)

A Judge of the Supreme Court may be **removed from office by an ORDER OF THE PRESIDENT**, passed after an **address by each House of Parliament** supported by:

- 1 a **majority of the TOTAL MEMBERSHIP** of that House, **AND**
- 2 a majority of **not less than TWO-THIRDS of the members present and voting** on the ground of **PROVED MISBEHAVIOUR or INCAPACITY**.

Note the double majority requirement - it is a "special majority" and is deliberately hard.

And note the two grounds: **proved misbehaviour** or **incapacity**. Not incompetence, not unpopular judgments, not disagreement with the Government.

The procedure is regulated by the Judges (Inquiry) Act 1968:

- 1 A motion signed by **100 members of the Lok Sabha** or **50 members of the Rajya Sabha**
- 2 The Speaker/Chairman may admit or refuse the motion
- 3 If admitted, a **three-member Inquiry Committee** (a Supreme Court judge, a High Court Chief Justice, and a distinguished jurist) investigates
- 4 If the Committee finds the Judge guilty, the House considers the motion

NO JUDGE OF THE SUPREME COURT HAS EVER BEEN REMOVED. The closest case was **Justice V Ramaswami (1993)**, where the Inquiry Committee found misbehaviour but the Lok Sabha motion failed to secure the required majority because the ruling party abstained. **Justice Soumitra Sen of the Calcutta High Court (2011)** was found guilty by the Rajya Sabha but **resigned before the Lok Sabha voted**, so technically no removal occurred.

The same procedure applies to High Court judges (Article 217(1)(b) read with Article 124(4)).

Note the word used in the Constitution is "REMOVED", not "impeached". Impeachment is technically the process for the President under Article 61. **Popular usage calls judicial removal "impeachment", but the constitutional term is removal** - a distinction some questions test.

KNOW · THE OTHER GUARANTEES OF INDEPENDENCE

Six features together secure judicial independence, and a question asking "which of the following secures judicial independence" expects these:

- 1 **Security of tenure** - removal only by the hard procedure above
- 2 **Salaries CHARGED on the Consolidated Fund** - so they are **discussed but NOT VOTED** by Parliament, and cannot be held hostage to a political majority. **This is the F1.5 charged-vs-voted point applied here**
- 3 **Salaries cannot be varied to a Judge's disadvantage during his term**, except during a **Financial Emergency** under Article 360
- 4 **Conduct of judges cannot be discussed in Parliament or a State Legislature** except on a motion for removal (Article 121, and Article 211 for State Legislatures)
- 5 **Bar on practice after retirement** - a retired Supreme Court judge may **not plead or act before any court or authority in India** (Article 124(7)). A retired High Court judge may not practise in the High Court from which he retired or any court subordinate to it, but **may practise in the Supreme Court and other High Courts**
- 6 **Power to punish for its own contempt** - Article 129 makes the Supreme Court a **court of record** with power to punish for contempt of itself; Article 215 does the same for High Courts

The Article 121 point is a good one for the interview. Parliament, which is otherwise sovereign in its own proceedings and enjoys the Article 105 privileges you learned in F1.5, **is expressly forbidden from discussing a judge's conduct** except on a removal motion. That prohibition is a deliberate constitutional limit on the legislature, imposed to protect the courts.

CHECK YOURSELF · SESSION 2

- 1 What does Article 124(2) actually say about consultation?
- 2 Name the four Judges Cases and what each decided
- 3 What is the composition of the collegium for Supreme Court and for High Court appointments?
- 4 What was the NJAC, which amendment created it, and what happened to it?
- 5 State the double majority required for removal, and the two grounds
- 6 How many members must sign a removal motion in each House?
- 7 Has any Supreme Court judge been removed? What happened in the Ramaswami and Sen cases?
- 8 Name six guarantees of judicial independence
- 9 What does Article 121 forbid, and why is that significant?
- 10 Compare the post-retirement practice bar for Supreme Court and High Court judges

3. Session 3 - Jurisdictions and the Five Writs



Five jurisdictions, five writs, and one of them is the writ your orders will face.

MUST MASTER · THE SUPREME COURT'S FIVE JURISDICTIONS

1. ORIGINAL JURISDICTION - Article 131. Exclusive jurisdiction in disputes:

- 1 Between the **Government of India and one or more States**
- 2 Between the Government of India and any State on one side and one or more States on the other
- 3 Between **two or more States**

This is federal dispute resolution, and it is EXCLUSIVE - no other court can hear such a dispute.

But note the limitation: it must be a dispute involving a **question of law or fact on which a legal right depends**. Purely political disputes are outside it.

2. WRIT JURISDICTION - Article 32. The Supreme Court may issue writs for the **ENFORCEMENT OF FUNDAMENTAL RIGHTS**. Critically:

- 1 **Article 32 is ITSELF a Fundamental Right** - it is in Part III. Dr Ambedkar called it "**the heart and soul of the Constitution**"
- 2 **It is confined to FUNDAMENTAL RIGHTS**. The Supreme Court cannot be approached under Article 32 for a violation of an ordinary legal right
- 3 **It cannot be suspended except during a National Emergency** under Article 359, and even then **not in respect of Articles 20 and 21** (44th Amendment protection)

3. APPELLATE JURISDICTION - in four categories:

- 1 **Constitutional appeals (Article 132)** - where a High Court certifies that a substantial question of law as to the interpretation of the Constitution is involved
- 2 **Civil appeals (Article 133)** - on a substantial question of law of general importance
- 3 **Criminal appeals (Article 134)** - where the High Court has reversed an acquittal and sentenced to death, or sentenced to death on withdrawal of a case, or certifies the case as fit for appeal
- 4 **SPECIAL LEAVE PETITION (Article 136)** - the Supreme Court may, **in its DISCRETION**, grant special leave to appeal from **any judgment, decree, determination, sentence or order in any cause or matter passed by ANY COURT OR TRIBUNAL** in India, **except a court or tribunal constituted under any law relating to the Armed Forces**

Article 136 is the widest jurisdiction any court in the world possesses, and it is entirely discretionary. **It is also the route by which a CGIT order in a provident fund matter could theoretically reach the Supreme Court**, though the ordinary route is Article 226 first.

4. ADVISORY JURISDICTION - Article 143. The **President may refer** to the Supreme Court:

- 1 A question of **law or fact of public importance** that has arisen or is likely to arise - the Court **MAY** give its opinion (discretionary; the Court has declined at least once)
- 2 A dispute arising out of a **pre-Constitution treaty or agreement** - the Court **SHALL** give its opinion (mandatory)

The advisory opinion is NOT binding and is NOT a judgment. It is an opinion. **This is a favourite examination point.**

5. REVIEW JURISDICTION - Article 137. The Supreme Court may **review its own judgments or orders**, subject to law and rules. And **Article 141** provides that **the law declared by the Supreme Court is BINDING ON ALL COURTS within the territory of India** - the doctrine of precedent given constitutional force.

A CURATIVE PETITION is a judge-made further remedy (from **Rupa Ashok Hurra v Ashok Hurra, 2002**) allowing a final challenge after a review petition is dismissed, on very narrow grounds - typically breach of natural justice or bias. It is the last resort in Indian litigation.

MUST MASTER · THE FIVE WRITS - AND WHICH ONE AN EMPLOYER WILL USE AGAINST YOU

Both Article 32 (Supreme Court) and Article 226 (High Courts) empower the issue of writs. Learn all five, because the paper tests their names and functions and because one of them concerns you directly.

Writ	Literally	What it does
HABEAS CORPUS	"You may have the body"	Orders a person detaining another to produce him before the court and justify the detention. Against unlawful detention. Available against both State and private persons
MANDAMUS	"We command"	Commands a public authority to PERFORM A PUBLIC DUTY it has failed to perform. Not available against a private person, nor to enforce a discretionary power, nor against the President or a Governor
PROHIBITION	"To forbid"	Issued by a superior court to an inferior court or tribunal to STOP it from proceeding in a matter beyond its jurisdiction. Preventive - issued while proceedings are pending
CERTIORARI	"To be certified"	Issued by a superior court to an inferior court or quasi-judicial authority to QUASH an order already passed without jurisdiction, in breach of natural justice, or with an error apparent on the face of the record. Curative - issued after the order
QUO WARRANTO	"By what authority"	Asks a person holding a public office by what authority he holds it. Available only for a substantive public office of a permanent character created by statute or the Constitution

THE DISTINCTION THAT MATTERS TO YOU: PROHIBITION vs CERTIORARI.

- 1 PROHIBITION is PREVENTIVE - it stops proceedings that are still going on.** If you have issued a Section 7A notice and begun an inquiry in a case where the Act plainly does not apply, an employer might seek **prohibition** to stop the inquiry
- 2 CERTIORARI is CURATIVE - it quashes an order already made.** Once you have passed your Section 7A order, the employer's remedy in the High Court is **certiorari**, to have the order quashed

So the two defective orders in F3.4 would be quashed by CERTIORARI, and on grounds the writ is designed for: Order 1 for breach of natural justice in substance (no reasons, contentions unanswered - Article 14), and Order 2 for an error apparent on the face of the record (waiving interest that cannot be waived).

MANDAMUS is the mirror image. If you **refused** to decide a Section 7A matter you were bound to decide, or refused to release a member's provident fund accumulation without lawful reason, the aggrieved party would seek **mandamus** to compel you to perform the duty. **Note that mandamus compels performance of a DUTY, it does not dictate the OUTCOME** - a court will order you to decide, not order you to decide in a particular way.

QUO WARRANTO in an EPFO context would arise if somebody were exercising the powers of an APFC without valid appointment.

COMMON UPSC TRAP · ARTICLE 32 VS ARTICLE 226 - THE COMPARISON THAT DECIDES WHERE A CASE GOES

Feature	Article 32 (Supreme Court)	Article 226 (High Court)
Is it itself a Fundamental Right?	YES - it is in Part III	NO - it is in Part V, Chapter V
Scope	Fundamental Rights ONLY	Fundamental Rights AND any other legal right
Discretion to refuse	Limited - the Court cannot refuse where an FR is violated	Wider - a discretionary remedy; may be refused for alternative remedy, delay, or conduct
Territorial limits	All India	Within the High Court's territorial jurisdiction , or where the cause of action arises
Can it be suspended?	Yes, during a National Emergency (Art 359) - but not for Arts 20 and 21	Not suspended by Article 359 in the same way
Which is WIDER?	Narrower in scope	WIDER in scope

The single most important practical point: ARTICLE 226 IS WIDER THAN ARTICLE 32. Article 32 covers only Fundamental Rights; Article 226 covers Fundamental Rights **and** ordinary legal rights. **This surprises candidates, who assume the Supreme Court's power must be greater. And this is why an employer challenging your Section 7A order goes to the High Court under Article 226, not to the Supreme Court under Article 32.** The employer's complaint is usually that you exceeded your statutory jurisdiction or failed to give reasons - a violation of a **legal right under the EPF Act plus Article 14**, and the natural forum is the wider Article 226. **A petition under Article 32 challenging a routine provident fund assessment would very likely be refused for want of a Fundamental Rights foundation and for the availability of an alternative remedy.**

Note the interaction with the s.7-I appeal. Because the EPF Act provides its own appeal to the CGIT, a High Court will normally require the employer to **exhaust that statutory remedy first**, and will entertain an Article 226 petition directly only where the order is challenged on jurisdictional grounds, or where the appellate remedy is illusory. **This is the doctrine of alternative remedy, and it is one of the reasons a well-reasoned order is valuable: it survives both the appeal and the writ.**

CHECK YOURSELF · SESSION 3

- 1 Name the Supreme Court's five jurisdictions with their articles
- 2 What makes Article 131 jurisdiction "exclusive", and what is its limitation?
- 3 Why did Ambedkar call Article 32 the heart and soul of the Constitution?
- 4 Name the four categories of appellate jurisdiction, and say what makes Article 136 exceptional
- 5 Distinguish the two limbs of Article 143 advisory jurisdiction. Is the opinion binding?
- 6 What is a curative petition and which case created it?
- 7 Name the five writs and state what each does
- 8 Distinguish prohibition from certiorari. Which applies to a completed Section 7A order?
- 9 Does mandamus dictate the outcome or compel the performance of a duty?
- 10 Which is wider, Article 32 or Article 226? Why does an employer use Article 226?
- 11 What is the doctrine of alternative remedy, and how does it interact with s.7-I?

4. Session 4 - High Courts, Subordinate Courts, Tribunals ★★★★★

MUST MASTER · HIGH COURTS - ARTICLES 214-231

- 1 **Article 214** - There shall be a High Court for each State. **Article 231** permits a **COMMON High Court for two or more States** or for a State and a Union Territory. **The current number of High Courts is 25 (CONFIRM)**
 - 2 **Composition - Article 216**: a Chief Justice and such other Judges as the President may **from time to time deem it necessary to appoint**. **There is no fixed constitutional strength for a High Court** - unlike the Supreme Court, where Parliament fixes the number
 - 3 **Appointment - Article 217(1)**: by the **President**, after consultation with the **CJI**, the **Governor of the State**, and (for a judge other than the Chief Justice) the **Chief Justice of the High Court**. In practice governed by the collegium (CJI + two senior-most SC judges)
 - 4 **Qualifications - Article 217(2)**: citizen of India who has
 - 5 held a **judicial office** in India for at least **10 years**, OR
 - 6 been an **advocate of a High Court** for at least **10 years**
 - 7 **NOTE: there is no "distinguished jurist" route for a High Court** - that exists only for the Supreme Court. A frequently tested asymmetry
 - 8 **Retirement age - 62** (contrast the Supreme Court's 65)
 - 9 **Transfer - Article 222**: the **President may transfer a Judge from one High Court to another**, after consultation with the CJI
 - 10 **Writ jurisdiction - Article 226**: as covered in Session 3, and **wider in scope than Article 32**
 - 11 **Superintendence - Article 227**: every High Court has **superintendence over all courts and tribunals** within its territorial jurisdiction
- Article 227 is worth noting in an EPFO context.** It gives the High Court a supervisory power over tribunals, which is part of why the CGIT's orders in provident fund appeals are subject to High Court oversight even though the Act provides no further statutory appeal.

KNOW · SUBORDINATE COURTS AND THE DISTRICT JUDICIARY - ARTICLES 233-237

- 1 **Article 233 - Appointment of District Judges** is by the **GOVERNOR**, in **consultation with the High Court**
- 2 **Article 234** - Appointment of persons other than District Judges to the judicial service is by the Governor, in accordance with rules made after consultation with the **State Public Service Commission** and the High Court
- 3 **Article 235 - CONTROL over subordinate courts** - including posting, promotion and leave - **vests in the HIGH COURT**
- 4 **Article 236** - definitions
- 5 **Article 237** - power to apply these provisions to certain classes of magistrates

The important structural point: appointment involves the Governor, but CONTROL vests in the High Court. This division protects the subordinate judiciary from executive interference in its functioning, while leaving formal appointment with the State executive. **Article 235 is the operative independence guarantee for the district judiciary**, and it is the answer to a question about who controls subordinate courts.

The three tiers of subordinate courts, broadly:

- 1 **District Court / District and Sessions Judge** - the principal civil and criminal court of original jurisdiction in a district
- 2 **Courts of Civil Judges (Senior and Junior Division) and Judicial Magistrates** below it
- 3 Specialised courts - Family Courts, Commercial Courts, and so on, created by statute

MUST MASTER · TRIBUNALS - ARTICLES 323A AND 323B, AND THE CGIT

Tribunals are adjudicatory bodies outside the ordinary court hierarchy, created to bring specialised expertise and speed to particular classes of dispute. They were given constitutional footing by the **42nd Amendment 1976**:

- 1 **Article 323A - ADMINISTRATIVE TRIBUNALS.** Empowers **PARLIAMENT ALONE** to provide for the adjudication of disputes relating to **recruitment and conditions of service of public servants**. Under it Parliament enacted the **Administrative Tribunals Act 1985**, creating the **Central Administrative Tribunal (CAT)** and State Administrative Tribunals
- 2 **Article 323B - TRIBUNALS FOR OTHER MATTERS.** Empowers **PARLIAMENT OR A STATE LEGISLATURE** to provide for tribunals for specified matters - taxation, foreign exchange, industrial and labour disputes, land reforms, elections, essential commodities, and others

The 323A / 323B distinction is examinable: 323A is Parliament ONLY and service matters ONLY; 323B is Parliament OR State Legislatures, and covers a listed range of other subjects.

THE CONSTITUTIONAL LIMIT ON TRIBUNALISATION. The 42nd Amendment tried to exclude the High Courts' jurisdiction over tribunal decisions. **In L Chandra Kumar v Union of India (1997) the Supreme Court held that:**

- 1 **The power of judicial review vested in the High Courts under Article 226/227 and in the Supreme Court under Article 32 is part of the BASIC STRUCTURE** and cannot be excluded
- 2 Tribunals may act as **courts of first instance**, but their decisions are **subject to scrutiny before a Division Bench of the High Court**
- 3 **So the exclusion of High Court jurisdiction was struck down**

L Chandra Kumar is the case that explains the last link in your own chain. Because judicial review by the High Court cannot be excluded, an employer aggrieved by a **CGIT order** in a provident fund appeal can go to the **High Court under Article 226** - and no statute could take that away.

THE EPF APPELLATE TRIBUNAL AND THE CGIT. As established in F3.2 and F3.4:

- 1 The EPF & MP Act originally provided for a separate **EPF Appellate Tribunal** under Section 7D
 - 2 **The Finance Act 2017 MERGED that Tribunal into the Central Government Industrial Tribunal (CGIT)** as part of a general rationalisation of tribunals
 - 3 So today an appeal under **Section 7-I** goes to the **CGIT acting as the EPF Appellate Tribunal**, within **60 days extendable by 60**, on a **75 per cent deposit under Section 7-O**
 - 4 And from there, **Article 226 to the High Court** - which **L Chandra Kumar** guarantees
- Two further points on tribunal reform, which are current-affairs adjacent:**
- 1 The **Tribunals Reforms Act 2021** abolished several appellate tribunals and transferred their functions to High Courts, and prescribed terms of service for tribunal members. Parts of earlier versions had been struck down in **Madras Bar Association** litigation
 - 2 The recurring constitutional theme is the **tension between efficiency (specialised tribunals) and independence (judicial control over appointments and tenure)**. **Madras Bar Association v Union of India** in its several rounds is the case line to name

CHECK YOURSELF · SESSION 4

- 1 How many High Courts are there, and what does Article 231 permit?
- 2 Is there a fixed constitutional strength for a High Court?
- 3 Give the two qualification routes for a High Court judge. Which Supreme Court route is absent?
- 4 Give the retirement ages for both courts
- 5 Who appoints District Judges, and who CONTROLS the subordinate judiciary?
- 6 Distinguish Article 323A from Article 323B on two grounds each
- 7 What did L Chandra Kumar 1997 decide, and why does it matter to your own appellate chain?
- 8 What happened to the EPF Appellate Tribunal, and under which statute?
- 9 Name the case line on tribunal reform

5. Session 5 - Judicial Review, Basic Structure, PIL



MUST MASTER · JUDICIAL REVIEW AND THE BASIC STRUCTURE DOCTRINE

JUDICIAL REVIEW is the power of the courts to examine the constitutionality of legislative enactments and executive orders, and to declare them **void** if they contravene the Constitution.

It is not conferred by a single article but flows from several: **Article 13** (laws inconsistent with Fundamental Rights are void), **Article 32** and **Article 226** (writ jurisdictions), **Articles 131-136** (the Supreme Court's jurisdictions), and **Article 246 with the Seventh Schedule** (legislative competence).

THE BASIC STRUCTURE DOCTRINE - the chain of cases you must know.

- 1 **Shankari Prasad (1951)** and **Sajjan Singh (1965)** - held that Parliament's amending power under **Article 368** was unlimited, and could amend Fundamental Rights
- 2 **Golaknath (1967)** - **REVERSED**: held that Fundamental Rights could NOT be amended at all. An absolute bar
- 3 **24th Amendment 1971** - Parliament responded by expressly asserting the power to amend any part of the Constitution, including Part III
- 4 **KESAVANANDA BHARATI (1973)** - the landmark. By a **7:6 majority** the Supreme Court held that **Parliament CAN amend any part of the Constitution INCLUDING Fundamental Rights, BUT CANNOT DESTROY OR ALTER THE "BASIC STRUCTURE" of the Constitution**. This is the middle path between Golaknath's absolute bar and Parliament's claim of unlimited power
- 5 **Indira Nehru Gandhi v Raj Narain (1975)** - applied the doctrine to strike down a clause of the 39th Amendment
- 6 **42nd Amendment 1976** - inserted clauses (4) and (5) into Article 368 declaring that no amendment shall be called in question in any court and that Parliament's amending power is unlimited
- 7 **MINERVA MILLS (1980)** - **struck down those clauses**, holding that **LIMITED AMENDING POWER is itself a basic feature**, and that **judicial review cannot be excluded**. Also held that the **BALANCE between Fundamental Rights and Directive Principles is part of the basic structure** - the F1.4 point
- 8 **Waman Rao (1981)** - held the doctrine applies to amendments made **after 24 April 1973** (the date of the Kesavananda judgment)
- 9 **SR Bommai (1994), L Chandra Kumar (1997), NJAC case (2015)** - successive applications

Features held to be part of the basic structure include: supremacy of the Constitution; the republican and democratic form of government; secularism; separation of powers; federalism; judicial review; the rule of law; free and fair elections; independence of the judiciary; the balance between Fundamental Rights and Directive Principles; and the limited amending power itself.

The list is NOT closed - the Court determines what is basic on a case-by-case basis, which is both the doctrine's strength (adaptability) and the standing criticism of it (uncertainty, and a court defining the limits of the legislature's power).

KNOW · JUDICIAL ACTIVISM AND PIL

PUBLIC INTEREST LITIGATION (PIL) is a judicially created procedure allowing a person acting **bona fide** in the public interest to move the court on behalf of others who cannot approach it themselves. It relaxed the traditional rule of **LOCUS STANDI** - that only a person whose own right is affected may sue.

Origins and key figures: developed in the late 1970s and 1980s, associated with **Justices PN Bhagwati and VR Krishna Iyer**. Landmark early cases include **Hussainara Khatoon (1979)** on undertrial prisoners and **SP Gupta (1981)**, which articulated the relaxed standing rule.

PIL relevance to labour and social security is direct, and you have already met one example. In **Bandhua Mukti Morcha v Union of India (1984)** the Supreme Court entertained a PIL on **bonded labour** and gave directions for identification and rehabilitation - the Article 23 territory from F1.3 and F2.8. And in **Asiad Workers' case (People's Union for Democratic Rights v Union of India, 1982)**, the Court held that **payment below the minimum wage amounts to FORCED LABOUR under Article 23** - the single most important labour-law application of Part III, and a case this manual has cited from F1.3 onwards.

Criticisms of judicial activism, which a balanced answer should name:

- 1 **Separation of powers concerns** - courts entering policy domains reserved to the executive and legislature
- 2 **Judicial capacity** - courts lack the machinery to design and monitor complex policy
- 3 **Accountability** - unelected judges making distributive choices
- 4 The counter-argument is that activism responded to genuine institutional failure, and that constitutional rights without an effective remedy are illusory

The balanced formulation for an interview: judicial review is a basic feature and cannot be excluded, but its legitimacy rests on the courts confining themselves to **legality and process** rather than substituting their own **policy preferences** - which is exactly the standard applied to you when a High Court reviews a Section 7A order. **The court asks whether you had jurisdiction, gave a hearing, and gave reasons. It does not re-do your arithmetic to reach its own preferred figure.**

MUST MASTER · THE COMPLETE CHAIN, WITH THE JUDICIARY IN PLACE

The spine, now complete from 1931 to the writ:

Karachi Resolution 1931 → Articles 39, 41, 42, 43 in Part IV, non-justiciable under **Article 37** → Parliament legislates voluntarily under **Concurrent Entries 23 and 24** with **Article 246**, through the **seven-stage process** of F1.5 → the **EPF & MP Act 1952**, an enabling Act → under which the executive (F1.6) **frames three Schemes** and notifies them in the **President's name under Article 77** → creating **EPFO**, a statutory body governed by a tripartite **Central Board of Trustees** → EPFO being an "other authority" is **"State" under Article 12** → so an **APFC's Section 7A power is quasi-judicial**, bound by **Article 14** (reasons, consistency) and **Article 21** as read in **Maneka Gandhi** (notice, hearing, fair procedure) → appeal under **Section 7-I** to the **CGIT acting as the EPF Appellate Tribunal, 60 + 60 days**, on a **75 per cent deposit under Section 7-O** → and thereafter to the **HIGH COURT UNDER ARTICLE 226**, whose **judicial review cannot be excluded by any statute because L Chandra Kumar (1997) held it part of the BASIC STRUCTURE** → the writ sought being **CERTIORARI**, to quash an order made without jurisdiction, in breach of natural justice, or with an error apparent on the face of the record.

Read that chain once more and notice what each of the three branches contributes. The legislature gave you your power. The executive gave you your rates and your rules. The judiciary decides whether you used them lawfully. Part IV told the State what to do; Part III controls how you do it; and the courts are how Part III is enforced.

That is the whole of Module 1's relevance to your job, in one paragraph.

CHECK YOURSELF · SESSION 5

- 1 From which articles does judicial review flow?
- 2 Recite the basic-structure case chain from Shankari Prasad to Minerva Mills, with what each held
- 3 What was the majority in Kesavananda, and what exactly did it decide?
- 4 What did Minerva Mills strike down, and which two basic features did it identify?
- 5 From which date does the doctrine apply, per Waman Rao?
- 6 Name eight features held to be part of the basic structure
- 7 What is PIL, which rule did it relax, and which judges are associated with it?
- 8 Name the two labour-related PILs this manual has cited, and what each held
- 9 State the balanced formulation on judicial activism
- 10 Recite the complete chain from the Karachi Resolution to certiorari

6. Graded Practice - 42 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. The current sanctioned strength of the Supreme Court, including the Chief Justice, is

(a) 26 (b) 31 (c) 34 (d) 40

Q. 2. The retirement age of a Supreme Court judge is

(a) 60 (b) 62 (c) 65 (d) 70

Q. 3. The retirement age of a High Court judge is

(a) 60 (b) 62 (c) 65 (d) 70

Q. 4. The seat of the Supreme Court may be changed by

(a) Parliament by law (b) the Chief Justice of India with the President's approval (c) the President alone (d) the Union Cabinet

Q. 5. The route of appointment to the Supreme Court that has never been used is that of

(a) a High Court judge of 5 years' standing (b) an advocate of 10 years' standing (c) a distinguished jurist (d) a District Judge

Q. 6. The writ jurisdiction of the Supreme Court is conferred by

(a) Article 32 (b) Article 131 (c) Article 136 (d) Article 226

Q. 7. The writ jurisdiction of the High Courts is conferred by

(a) Article 32 (b) Article 131 (c) Article 226 (d) Article 227

Q. 8. The Supreme Court's exclusive original jurisdiction in federal disputes is under

(a) Article 131 (b) Article 132 (c) Article 136 (d) Article 143

Q. 9. Special Leave to Appeal is granted under

(a) Article 132 (b) Article 134 (c) Article 136 (d) Article 137

Q. 10. The advisory jurisdiction of the Supreme Court is under

(a) Article 137 (b) Article 141 (c) Article 143 (d) Article 145

Q. 11. The provision making the law declared by the Supreme Court binding on all courts is

(a) Article 137 (b) Article 141 (c) Article 142 (d) Article 144

Q. 12. The writ issued to quash an order already passed by a quasi-judicial authority is

(a) mandamus (b) prohibition (c) certiorari (d) quo warranto

Q. 13. The writ issued to stop proceedings still pending before an inferior tribunal is

(a) habeas corpus (b) prohibition (c) certiorari (d) quo warranto

Q. 14. Administrative Tribunals for service matters are provided for by

(a) Article 323A (b) Article 323B (c) Article 227 (d) Article 235

Q. 15. Control over subordinate courts vests in the

- (a) Governor (b) State Government (c) High Court (d) State Public Service Commission

Q. 16. District Judges are appointed by the

- (a) High Court (b) Governor, in consultation with the High Court (c) President (d) Chief Justice of India

Q. 17. The removal of a Supreme Court judge requires a majority of the total membership of each House and

- (a) a simple majority of those present and voting (b) two-thirds of those present and voting (c) three-fourths of those present and voting (d) unanimity

Q. 18. The grounds for removal of a judge are

- (a) incompetence or inefficiency (b) proved misbehaviour or incapacity (c) loss of confidence of Parliament (d) any ground Parliament considers sufficient

6.2 Level 2 - Understanding**Q. 19. India's judiciary is described as "integrated" because**

- (a) all judges are appointed by the President (b) there is a single hierarchy applying both Union and State law, unlike the US dual system (c) the Supreme Court alone hears constitutional cases (d) tribunals have been abolished

Q. 20. The collegium system was created by

- (a) an express provision of the Constitution (b) the Second Judges Case 1993, holding that consultation means concurrence (c) the Administrative Tribunals Act 1985 (d) the 99th Amendment

Q. 21. The composition of the collegium for Supreme Court appointments is

- (a) the CJI alone (b) the CJI and the two senior-most judges (c) the CJI and the four senior-most judges (d) all Supreme Court judges

Q. 22. The National Judicial Appointments Commission was

- (a) brought into force in 2015 (b) struck down in the Fourth Judges Case 2015 as violating the basic structure (c) upheld by the Supreme Court (d) never enacted by Parliament

Q. 23. Which one of the following is WIDER in scope?

- (a) Article 32, because it is a Fundamental Right (b) Article 226, because it covers Fundamental Rights and other legal rights (c) They are identical in scope (d) Article 131

Q. 24. An employer aggrieved by an APFC's Section 7A order would ordinarily seek

- (a) habeas corpus under Article 32 (b) certiorari under Article 226, after exhausting the s.7-I appeal (c) mandamus under Article 32 (d) quo warranto

Q. 25. Mandamus would be the appropriate writ where an APFC

- (a) has passed an unreasoned order (b) has refused to decide a matter he is bound in law to decide (c) is proceeding without jurisdiction in a pending inquiry (d) holds office without valid appointment

Q. 26. Mandamus, when issued, compels

- (a) a particular outcome favourable to the petitioner (b) the performance of a public duty, without dictating the outcome (c) the payment of compensation (d) the transfer of the case to another authority

Q. 27. An advisory opinion under Article 143 is

(a) a binding judgment (b) an opinion that is not binding and not a judgment (c) enforceable by contempt (d) reviewable under Article 137

Q. 28. Judges' salaries are charged on the Consolidated Fund so that they are

(a) exempt from income tax (b) discussed but not voted by Parliament, protecting independence (c) determined by the judiciary itself (d) revised annually

Q. 29. Article 121 provides that

(a) judges may be questioned in Parliament at any time (b) the conduct of a judge shall not be discussed in Parliament except on a motion for removal (c) Parliament may fix judges' salaries downwards (d) judges may address Parliament

Q. 30. A retired Supreme Court judge

(a) may practise in any High Court (b) may not plead or act before any court or authority in India (c) may practise only in the Supreme Court (d) faces no restriction

Q. 31. In L Chandra Kumar v Union of India (1997), the Supreme Court held that

(a) tribunals may finally decide matters without judicial review (b) judicial review by the High Courts and the Supreme Court is part of the basic structure and cannot be excluded (c) Article 323A is unconstitutional (d) all tribunals must be abolished

Q. 32. The distinction between Articles 323A and 323B is that

(a) 323A allows only Parliament to legislate and covers only service matters, whereas 323B allows Parliament or State Legislatures and covers a listed range of other subjects (b) both are identical (c) 323A covers taxation only (d) 323B is confined to service matters

Q. 33. The EPF Appellate Tribunal was merged into the CGIT by the

(a) Administrative Tribunals Act 1985 (b) Finance Act 2017 (c) Tribunals Reforms Act 2021 (d) Code on Social Security 2020

6.3 Level 3 - Recruitment Test standard**Q. 34. Match List-I with List-II and select the correct answer using the code below:**

List-I (Writ)	List-II (Function)
A. Habeas corpus	1. Quashes an order already passed
B. Mandamus	2. Questions the authority to hold a public office
C. Certiorari	3. Produces a detained person before the court
D. Quo warranto	4. Commands performance of a public duty

(a) A-3 B-4 C-1 D-2 (b) A-3 B-1 C-4 D-2 (c) A-1 B-4 C-3 D-2 (d) A-3 B-4 C-2 D-1

Q. 35. Consider the following statements:

- Article 32 is itself a Fundamental Right.
- Article 226 is wider in scope than Article 32.
- Article 32 cannot be suspended in respect of Articles 20 and 21 even during a National Emergency.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 36. In Kesavananda Bharati (1973), the Supreme Court held by a majority of

(a) 5:4 that Fundamental Rights cannot be amended (b) 7:6 that Parliament may amend any part but cannot destroy the basic structure (c) 9:4 that the amending power is unlimited (d) unanimously that Article 368 is unamendable

Q. 37. Minerva Mills (1980) struck down clauses of Article 368 inserted by the 42nd Amendment and held that

(a) Fundamental Rights are unamendable (b) limited amending power and judicial review are themselves basic features, and the balance between Fundamental Rights and Directive Principles is part of the basic structure (c) Directive Principles prevail over Fundamental Rights absolutely (d) Parliament's amending power is unlimited

Q. 38. Consider the following statements about High Court judges:

- 1 They are appointed by the President after consultation with the CJI, the Governor and (except for the Chief Justice) the Chief Justice of the High Court.
- 2 There is a "distinguished jurist" route to appointment as a High Court judge.
- 3 They retire at 62.

Which of the above statements are correct?

(a) 1 and 2 only (b) 1 and 3 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 39. Which one of the following statements is not correct?

(a) Public Interest Litigation relaxed the traditional rule of locus standi (b) In the Asiad Workers' case the Supreme Court held payment below minimum wage amounts to forced labour under Article 23 (c) In Bandhua Mukti Morcha the Court refused to entertain a PIL on bonded labour (d) PIL is associated with Justices PN Bhagwati and VR Krishna Iyer

Q. 40. A High Court reviewing an APFC's Section 7A order will principally examine

(a) whether it would have reached the same figure on the evidence (b) whether the APFC had jurisdiction, gave a hearing and gave reasons (c) the employer's financial capacity to pay (d) the policy merits of the wage ceiling

Q. 41. A curative petition

(a) is provided for by Article 137 (b) is a judge-made last-resort remedy from Rupa Ashok Hurra (2002), available after a review petition is dismissed, on narrow grounds (c) may be filed before a review petition (d) lies to the High Court

Q. 42. The reason no statute can take away an employer's right to move the High Court against a CGIT order is that

(a) the EPF Act expressly preserves it (b) judicial review under Articles 226 and 227 is part of the basic structure, per L Chandra Kumar (c) the CGIT is not a tribunal (d) Article 136 requires it

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	c	34 (CJI + 33), under the 2019 amendment Act
2	c	65
3	b	62 - the 65/62 pair is heavily tested

Q	Ans	Explanation
4	b	The CJI with the President's approval - Article 130. Notably not Parliament
5	c	Distinguished jurist - exists in Article 124(3)(c) but has never been used
6	a	Article 32
7	c	Article 226
8	a	Article 131
9	c	Article 136 - the widest discretionary appellate power
10	c	Article 143
11	b	Article 141
12	c	Certiorari - curative, after the order
13	b	Prohibition - preventive, while proceedings are pending
14	a	Article 323A
15	c	High Court - Article 235
16	b	Governor in consultation with the High Court - Article 233
17	b	Two-thirds of those present and voting , plus a majority of total membership - a double requirement
18	b	Proved misbehaviour or incapacity - and only these two

7.2 Level 2

Q	Ans	Explanation
19	b	A single hierarchy applying both Union and State law , contrasted with the US dual system
20	b	The Second Judges Case 1993 - the collegium is a judicial creation, not a constitutional provision. This is the key point about it
21	c	CJI + four senior-most judges for Supreme Court appointments (CJI + two for High Court appointments)
22	b	Struck down in the Fourth Judges Case 2015 as violating the basic structure by impairing judicial independence
23	b	Article 226 is wider - it covers Fundamental Rights AND other legal rights. This surprises candidates
24	b	Certiorari under Article 226 , ordinarily after exhausting the s.7-I appeal (doctrine of alternative remedy)
25	b	Refusal to perform a duty attracts mandamus. (a) attracts certiorari; (c) attracts prohibition; (d) attracts quo warranto
26	b	Performance of the duty, not the outcome . A court orders you to decide, not to decide in a particular way
27	b	Not binding and not a judgment - a frequently tested point
28	b	Discussed but not voted - the charged-expenditure device from F1.5, applied to protect independence
29	b	Conduct not to be discussed except on a removal motion - a deliberate limit on the legislature

Q	Ans	Explanation
30	b	May not plead or act before any court or authority in India - Article 124(7). A High Court judge's bar is narrower
31	b	Judicial review is part of the basic structure and cannot be excluded. Tribunals may decide first, but High Court scrutiny survives
32	a	323A: Parliament only, service matters only. 323B: Parliament or State Legislatures, listed other subjects
33	b	Finance Act 2017

7.3 Level 3

Q	Ans	Explanation
34	a	A-3 habeas corpus produces the body; B-4 mandamus commands a duty; C-1 certiorari quashes; D-2 quo warranto questions title to office
35	d	All three correct. Article 32 is in Part III, Article 226 is wider in scope, and the 44th Amendment protected Articles 20 and 21 from suspension
36	b	7:6 - Parliament may amend any part but cannot destroy the basic structure. The middle path between Golaknath and unlimited power
37	b	Limited amending power and judicial review are basic features; the FR-DPSP balance is part of the basic structure - the F1.4 point
38	b	1 and 3 only. Statement 2 is FALSE - there is no distinguished-jurist route for a High Court ; that exists only for the Supreme Court
39	c	(c) is FALSE. In Bandhua Mukti Morcha (1984) the Court DID entertain the PIL and gave directions on bonded labour
40	b	Jurisdiction, hearing, reasons. A writ court reviews legality and process, not the merits of your arithmetic. This is why F3.4's discipline matters
41	b	A judge-made last-resort remedy from Rupa Ashok Hurra (2002), after review is dismissed, on narrow grounds such as breach of natural justice or bias
42	b	L Chandra Kumar - judicial review under Articles 226/227 is part of the basic structure, so no statute can exclude it

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.7 - THE JUDICIARY

INTEGRATED JUDICIARY ONE hierarchy applying **both Union and State law** - unlike the **US DUAL system** · a District Court can try a central-Act offence · **a High Court under Art 226 reviews a central authority like an APFC** · **Art 141**: Supreme Court's declared law binds all courts · integration is a **UNITARY feature** of an otherwise federal Constitution

SUPREME COURT - COMPOSITION

- 1 **Art 124(1)** CJI + not more than 7 others until Parliament prescribes more · **current sanctioned strength 34 (CJI + 33)**, 2019 Act
- 2 **Art 130 SEAT: Delhi, or elsewhere as the CJI with the PRESIDENT'S APPROVAL appoints** - not Parliament
- 3 **Art 124(3) qualifications: HC judge 5 years OR HC advocate 10 years OR DISTINGUISHED JURIST (never used)**
- 4 **NO minimum age** prescribed · **RETIREMENT 65** (High Court **62**)

APPOINTMENT - THE FOUR JUDGES CASES

- 1 **Art 124(2)**: President appoints after **consultation**; **CJI SHALL ALWAYS BE CONSULTED** for judges other than the CJI
- 2 **First Judges Case (SP Gupta 1981)** - consultation $\neq$ concurrence; **EXECUTIVE primacy**
- 3 **Second Judges Case (1993) - REVERSED**: consultation MEANS concurrence; **CREATED THE COLLEGIUM**
- 4 **Third Judges Case (1998)** - collegium = **CJI + 4 senior-most** for SC; **CJI + 2 senior-most** for HC appointments and transfers
- 5 **Fourth Judges Case (2015)** - **struck down the 99th Amendment and the NJAC Act** as violating the **BASIC STRUCTURE**; collegium restored
- 6 **THE COLLEGIUM IS A JUDICIAL CREATION, NOT A CONSTITUTIONAL PROVISION** - the key point

REMOVAL - Art 124(4) · **grounds: PROVED MISBEHAVIOUR or INCAPACITY** (only these) ·

DOUBLE MAJORITY: majority of **TOTAL MEMBERSHIP + 2/3 of those PRESENT AND VOTING**, in each House · **Judges (Inquiry) Act 1968**: motion by **100 LS** or **50 RS** members, three-member Inquiry Committee · **NO SC JUDGE HAS EVER BEEN REMOVED** · **V Ramaswami 1993** - Committee found misbehaviour but LS motion failed · **Soumitra Sen 2011** - RS passed, resigned before LS voted · **the constitutional word is REMOVAL, not impeachment** (impeachment is for the President, Art 61)

SIX GUARANTEES OF INDEPENDENCE security of tenure · **salaries CHARGED on the Consolidated Fund (discussed but NOT VOTED)** · salaries not variable to disadvantage except in a **Financial Emergency (Art 360)** · **Art 121 / Art 211: conduct NOT to be discussed in the legislature except on a removal motion** · **post-retirement practice bar (Art 124(7): a retired SC judge may not plead before ANY court or authority in India; a retired HC judge may still practise in the SC and other High Courts)** · **contempt power as a court of record (Art 129 SC, Art 215 HC)**

FIVE JURISDICTIONS

- 1 **ORIGINAL Art 131 - EXCLUSIVE** in disputes Govt v States, or State v State; must involve a legal right, not pure politics
- 2 **WRIT Art 32** - for **FUNDAMENTAL RIGHTS ONLY** · itself a **Fundamental Right**, Ambedkar's "**heart and soul**" · suspendable in a National Emergency under **Art 359** but **NOT for Arts 20 and 21** (44th Amdt)
- 3 **APPELLATE** - **Art 132** constitutional · **Art 133** civil · **Art 134** criminal · **Art 136 SPECIAL LEAVE** - the widest discretionary power of any court in the world, from any court or tribunal **except Armed Forces tribunals**
- 4 **ADVISORY Art 143** - (i) question of law or fact of public importance: Court **MAY** opine; (ii) pre-Constitution treaty dispute: Court **SHALL** opine · **the opinion is NOT BINDING and NOT a judgment**
- 5 **REVIEW Art 137** · **Art 141** precedent · **CURATIVE PETITION** from **Rupa Ashok Hurra 2002** - last resort after review, narrow grounds

THE FIVE WRITS

- 1 **HABEAS CORPUS** - produce the body; against unlawful detention; **available against private persons too**
- 2 **MANDAMUS** - command performance of a **public duty**; **NOT** against a private person, **NOT** for a discretionary power, **NOT** against the President or a Governor
- 3 **PROHIBITION - PREVENTIVE**, stops an inferior court/tribunal **while proceedings are pending**
- 4 **CERTIORARI - CURATIVE, QUASHES an order already passed** for want of jurisdiction, breach of natural justice, or error apparent on the face of the record
- 5 **QUO WARRANTO** - by what authority do you hold this **substantive public office of a permanent character**

APPLIED TO YOUR OWN ORDERS

- 1 **You pass a bad Section 7A order** → **CERTIORARI** · F3.4's Order 1 (no reasons - Art 14) and Order 2 (waived unwaivable interest - error on the face of the record) both fall to it
- 2 **You begin an inquiry plainly outside the Act** → **PROHIBITION**
- 3 **You refuse to decide, or refuse to release an accumulation** → **MANDAMUS** (which compels you to **decide**, not to decide a particular way)
- 4 **Somebody exercises APFC powers without valid appointment** → **QUO WARRANTO**

ART 32 vs ART 226 - the decisive comparison

- 1 **32 is a Fundamental Right; 226 is not**
- 2 **32 covers FRs ONLY; 226 covers FRs AND ANY OTHER LEGAL RIGHT**
- 3 **SO ARTICLE 226 IS WIDER** - the point candidates get wrong
- 4 226 is **discretionary** and may be refused for **alternative remedy, delay or conduct**
- 5 **An employer challenges your order under Art 226, normally after exhausting the s.7-I appeal** - the **DOCTRINE OF ALTERNATIVE REMEDY**

HIGH COURTS - Arts 214-231 · **25 High Courts (CONFIRM)** · **Art 231** permits a **COMMON High Court for two or more States** · **Art 216: NO fixed strength** (contrast the SC) · **Art 217** qualifications: judicial office 10 years OR HC advocate 10 years - **NO distinguished-jurist route** · retire at 62 · **Art 222** transfer by the President after consulting the CJI · **Art 227 SUPERINTENDENCE** over all courts AND TRIBUNALS in its territory

SUBORDINATE JUDICIARY - Arts 233-237 · **Art 233: District Judges appointed by the GOVERNOR in consultation with the High Court** · **Art 234: other judicial service appointments** via the **State PSC** and the High Court · **Art 235: CONTROL vests in the HIGH COURT** - the operative independence guarantee · *appointment involves the Governor; control belongs to the High Court*

TRIBUNALS - 42nd Amendment 1976

- 1 **Art 323A - PARLIAMENT ONLY, SERVICE MATTERS ONLY → Administrative Tribunals Act 1985**, CAT and State ATs
- 2 **Art 323B - PARLIAMENT OR STATE LEGISLATURES**, listed subjects (tax, forex, industrial and labour disputes, land reform, elections, essential commodities)
- 3 **L CHANDRA KUMAR 1997: judicial review under Arts 226/227 and 32 is part of the BASIC STRUCTURE and cannot be excluded**; tribunals may decide first but are subject to a Division Bench of the High Court
- 4 **EPF Appellate Tribunal (s.7D) MERGED INTO THE CGIT by the FINANCE ACT 2017 · s.7-I appeal 60 + 60 days, s.7-O deposit 75%, then Art 226**
- 5 **Tribunals Reforms Act 2021 · MADRAS BAR ASSOCIATION** case line · the standing tension: **efficiency vs independence**

JUDICIAL REVIEW AND BASIC STRUCTURE

- 1 Flows from **Art 13, 32, 226, 131-136, and 246 with the Seventh Schedule** - not one article
- 2 **Shankari Prasad 1951 / Sajjan Singh 1965** - amending power unlimited
- 3 **Golaknath 1967 - REVERSED**: FRs cannot be amended at all
- 4 **24th Amendment 1971** - Parliament asserts the power
- 5 **KESAVANANDA BHARATI 1973 (7:6) - Parliament MAY amend any part INCLUDING Part III, but CANNOT destroy the BASIC STRUCTURE**
- 6 **Indira Nehru Gandhi 1975** - doctrine applied to the 39th Amendment
- 7 **42nd Amendment 1976** - inserted Art 368(4) and (5) excluding review
- 8 **MINERVA MILLS 1980 - struck those clauses down; limited amending power and judicial review are themselves basic features; the FR-DPSP BALANCE is basic structure**
- 9 **Waman Rao 1981** - doctrine applies to amendments after **24 April 1973**
- 10 Basic features include: constitutional supremacy · republican and democratic government · secularism · separation of powers · federalism · **judicial review** · rule of law · free and fair elections · **judicial independence** · **the FR-DPSP balance** · **limited amending power** · **THE LIST IS NOT CLOSED**

PIL AND ACTIVISM relaxed **LOCUS STANDI** · Justices **PN BHAGWATI** and **VR KRISHNA IYER** · **Hussainara Khatoon 1979** (undertrials), **SP Gupta 1981** (standing) · **ASIAD WORKERS / PUDR 1982: BELOW-MINIMUM-WAGE PAYMENT IS FORCED LABOUR UNDER ART 23** · **BANDHUA MUKTI MORCHA 1984: PIL on bonded labour ENTERTAINED, directions given** · criticisms: separation of powers, judicial capacity, accountability · **balanced formulation: review is a basic feature, but its legitimacy rests on confining courts to LEGALITY AND PROCESS rather than POLICY** - exactly the standard applied to your own orders

THE COMPLETE CHAIN Karachi 1931 → Arts 39/41/42/43 (Part IV, non-justiciable under Art 37) → Parliament under Concurrent Entries 23-24 with Art 246, through the seven stages → **EPF & MP Act 1952** → executive frames three Schemes, notified in the President's name under Art 77 → **EPFO**, tripartite CBT → "State" under Art 12 → **APFC's s.7A power** quasi-judicial, bound by Art 14 and Art 21 (**Maneka Gandhi**) → **s.7-I appeal to the CGIT, 60 + 60, on a 75% deposit** → **HIGH COURT UNDER ART 226**, whose review cannot be excluded (**L Chandra Kumar**) → the writ sought being **CERTIORARI** · *the legislature gave you the power, the executive gave you the rates, the judiciary decides whether you used them lawfully*

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.7 - THE JUDICIARY

INTEGRATED single hierarchy (US = dual) · Art 141 binds all courts

SC: 34 judges · retire 65 · Art 130 seat changed by CJI + President · distinguished-jurist route **NEVER** used

HC: 25 courts · retire 62 · **NO** fixed strength · **NO** distinguished-jurist route · Art 222 transfer · Art 227 superintendence

COLLEGIUM = judicial creation (2nd Judges 1993) · CJI + 4 (SC), CJI + 2 (HC) · NJAC struck down 2015

REMOVAL: proved misbehaviour or incapacity · majority of **TOTAL** membership + 2/3

PRESENT AND VOTING · 100 LS / 50 RS · **NEVER** done

INDEPENDENCE: charged salaries · Art 121 no discussion · Art 124(7) practice bar · Art 129/215 contempt

JURISDICTIONS: 131 original (exclusive, federal) · 32 writ (FRs only) · 132/133/134 appeals · 136 SLP (widest, not Armed Forces) · 143 advisory (**NOT** binding) · 137 review · 141 precedent

FIVE WRITS: **HABEAS CORPUS** (body) · **MANDAMUS** (duty) · **PROHIBITION** (stop pending) · **CERTIORARI** (quash passed) · **QUO WARRANTO** (office)

PROHIBITION = **PREVENTIVE** · **CERTIORARI** = **CURATIVE**

YOUR BAD ORDER → **CERTIORARI** · **YOUR REFUSAL TO DECIDE** → **MANDAMUS**

MANDAMUS compels the **DUTY**, never the **OUTCOME**

ART 226 IS WIDER THAN ART 32 — 226 covers FRs **AND** other legal rights

Employer uses Art 226 after exhausting s.7-I (alternative remedy doctrine)

Art 233 District Judges by **GOVERNOR** + HC · Art 235 **CONTROL** = **HIGH COURT**

323A = Parliament only, service only · 323B = Parliament **OR** States, listed subjects

L CHANDRA KUMAR 1997: judicial review = **BASIC STRUCTURE**, cannot be excluded

EPF Appellate Tribunal merged into CGIT by **FINANCE ACT 2017**

BASIC STRUCTURE: Shankari Prasad → Golaknath 1967 → 24th Amdt → **KESAVANANDA 1973** (7:6) → 42nd Amdt → **MINERVA MILLS 1980** → Waman Rao (after 24 Apr 1973)

PIL: locus standi relaxed · Bhagwati + Krishna Iyer · **ASIAD WORKERS 1982** =

below-minimum-wage **IS FORCED LABOUR** (Art 23) · **BANDHUA MUKTI MORCHA 1984** entertained

A writ court asks: **JURISDICTION, HEARING, REASONS** — not your arithmetic